

Form No.:HCJD/C-121

Order Sheet

IN THE LAHORE HIGH COURT, MULTAN BENCH MULTAN.

JUDICIAL DEPARTMENT

W.P. No.6928 of 2015.

Ibrar Hussain

Versus

RPO etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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17.06.2015.

Rana Asif Saeed, Advocate for the petitioner.
Mr. Aziz-ur-Rehman Khan AAG with Shahzad Amin, DSP

Through the present petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner has challenged the impugned order of 2nd disciplinary inquiry and issuance of show cause notice dated 17.3.2015 by the Additional I.G /RPO, Multan.

2. The relevant facts for the disposal of this writ petition are that the petitioner had been serving in Punjab Police Department since the year 1988 as Assistant Sub Inspector (ASI) and is presently serving as Inspector. In the year 2014, the petitioner was serving as SHO Police Station Shah Rukan-e-Alam, Multan, when respondent No.4 lodged FIR No.823-14 dated 27.11.2014 under Section 9-C/CNSA against one Zahoor Ahmad son of Muhammad Ramzan, resident of Mouza Oujla, Tehsil Kabirwala, District Khanewal in respect of recovery of Charas weighing 1120 grams. After registration of case,

respondent No.4 investigated the case, found the said accused guilty, prepared report under Section 173 Cr.P.C and submitted before the competent Court. Thereafter, Niaz Ahmad, son of accused Zahoor Ahmad lodged the complaint to RPO, Multan alleging false involvement of his father, on which Ibrar Hussain-petitioner and Muhammad Latif, S.I. were charge-sheeted. S.P. Saddar, Multan conducted inquiry against petitioner and respondent No.4 under E & D Rules, 1975. Ultimately S.P. Saddar, Multan recommended dropage of inquiry against the petitioner and forwarded the same to City Police Officer, Multan. However Muhammad Latif, S.I. was held guilty for not conducting the investigation on merits. Thereafter through impugned Show Cause Notice dated 17.3.2015, the RPO, Multan has again started the disciplinary proceedings, hence this writ petition.

3. Learned counsel for the petitioner submits that the impugned order of inquiry and show cause notice amounts to vexation of the petitioner twice and same is the result of misuse of authority, coram non judice and against the provisions of natural justice. He further contends that the impugned action runs counter to the rights of the petitioner protected under Article 13-A of the Constitution of Islamic

Republic of Pakistan, 1973. Adds that the Inquiry Officer has already recommended for stoppage of Inquiry No.209/PA dated 24.1.2015 for want of evidence and, as such, inquiry was dropped for all intents and purposes. The order of fresh inquiry is absolutely illegal and without lawful authority.

4. On the other hand, learned Assistant Advocate General submits that in terms of Rule 14 of the Punjab Police (E & /D) Rules 1975, Inspector General of Police, Additional Inspector General of Police, or a Superintendent of Police can call for record of awards made by their subordinates and confirm, enhance, modify or annul the same or make further investigation or direct such to be made before passing such order. Adds that the witnesses who recorded their statements in favour of the petitioner, were police officials, who were performing functions under the petitioner. However, at the time of re-enquiry, the said officials recorded their statements, against the petitioner, without taking any influence or pressure from him. Even otherwise, the inquiry was dropped for want of proof and the petitioner was not exonerated. He further submits that successive inquiries can be conducted under the law.

5. Heard.

6. It is well settled principle of law that successive inquiries could be conducted to find out the truth. In the instant

case the petitioner was never exonerated in the earlier inquiry and no injustice would be done if a fresh inquiry is held in view of the changed circumstances i.e. the new evidence which has come on record on the basis of the statements of the police officials who recorded their statements in the fresh inquiry when they were no more working under the petitioner.

7. In the case titled “Amir Shahbaz, Director Works and Service Department, Government of N.-W.F.P.-, District Shangla, Swat v. Government of N.-W.F.P. through Chief Secretary and others” (2004 PLC (C.S.) 784), the Hon’ble Supreme Court observed as under:

“.....There is no cavil with the proposition that successive inquiries could have been held to unveil the reality.....

“..... It is worth-mentioning to note that the petitioner was never exonerated in any inquiry and no injustice whatsoever has been done with the petitioner.....”

8. No doubt this court in exercise of writ jurisdiction can quash inquiry if it is a result of mala fide, without jurisdiction, colorable exercise of power and fraud on law is pleaded and floating on the face of record and is a result of gross abuse of authority as held by the superior courts of Pakistan in the following judgments.

- i. Lt. Cdr.(R) Abdul Aziz Narejo vs. Karachi Port Trust through Chairman and another. **(2015 PLC (CS)699)**
- ii. Chairman National Accountability Bureau and another vs. Muhammad Irshad Khan.**(2008 SCMR 1012)**
- iii. Muhammad Asif Margoob Siddiqui vs. Pakistan through Secretary of law and Parliamentary Affairs Islamabad and 3 others. **(2008 MLD 1735)**
- iv. Muhammad Irshad Khan vs. Chairman, National Accountability Bureau and 2 others. **(2007 P.Cr.L.J. 1957)**

9. In the case, Muhammad Irshad Khan supra, the Hon'ble Sindh High Court made following observations:-

“In view of the above position, the investigation can be corrected and. necessary orders can be passed if the aggrieved party alleges and proves one or other of the following conditions:-

(1) Investigation initiated beyond the jurisdiction of Investigating Agency;

(2) Investigation initiated with mala fide intention:

(i) in bad faith out of personal motives either to hurt the person against whom the action is taken or to benefit oneself.

(ii) in colourable exercise of powers;

(iii) not authorized by the law under which the action is taken;

(iv) Action taken in fraud of the law, and

(v) Abuse of the process of law.”

10. In the case Lt. Cdr.(R) Abdul Aziz Narejo, supra, the Hon'ble Sindh High Court allowed the petition, taking him to

consideration that the petitioner in that case was exonerated and proceeding were dropped by second Inquiry Committee, quash the impugned order as the same was passed on the basis of the earlier charge sheet and consequently held that show cause notice was non-existent on that date, is without any lawful authority and without jurisdiction and cannot be sustained in law. The case cited above is quite different from the case of the petitioner, thus the said case law is not of much help for the petitioner's case. The relevant observations made in the case noted above, are reproduced herein below:-

“8. On a careful examination of the entire record, it appears that after the first Inquiry report dated 15-5-2009, the petitioner was issued a show-cause notice dated 21-7-2009, whereby explanation was sought from the petitioner on the basis of Inquiry Report dated 15-5-2009. It is pertinent to note, that no further substantial proceedings took place, pursuant to such show-cause notice dated 21-7-2009, and in the meantime another Inquiry Committee was constituted in consonance to the advice of the Legal Advisor of respondent No.1. The said Inquiry was conducted thereafter and a report dated 16-6-2011 was issued, wherein it was concluded that the charges against the petitioner were not proved, and it was recommended that a warning be issued to the petitioner. Therefore, once a second Inquiry was conducted on its own by the respondent No.1, in which the petitioner stood exonerated, the show-cause notice dated 21-7-2009 issued on the basis of Inquiry Report dated 15-5-2009 was no more in field and in fact for all practical and legal purposes, had abated and was non-existent in the

eyes of law. In view of such position there was no reason with the respondents to hold the petitioner guilty of an alleged offence which was never proved and was rather dropped by the second Inquiry Committee in its report dated 16-6-2011. It is trite law that nobody shall be condemned unheard whereas, no adverse action shall be taken against a person unless he is confronted with the allegations and charges against him through a proper show cause. Whereas in the instant matter, after the second Inquiry dated 16-6-2011, there was no such show cause or charge sheet in field as the earlier show cause notice dated 21-7-2009 had already abated. Hence, the impugned order dated 10-9-2012 which has been passed on the basis of the earlier charge sheet dated 9-8-2008 and the show cause notice dated 21-7-2009 which were non-existent on that date, is without any lawful authority and without jurisdiction and cannot be sustained in law. On scrutiny of the impugned order dated 10-9-2012 it appears that the termination order has been passed against the petitioner on the same set of allegations which were not proved against the petitioner by the subsequent inquiry report dated 16-6-2011, wherein the maximum recommendation by the inquiry committee was issuance of a warning letter to the petitioner.”

11. The petitioner has failed to point out any mala fide, jurisdictional error, bad faith, colorable exercise of power, abuse of authority and fraud on law on the part of the respondent by ordering fresh inquiry within the parameters set up by the superior courts warranting interference of this court to quash an inquiry. In terms of Article 189 of the Constitution of the Islamic Republic of Pakistan, 1973, a law declared by

the Hon'ble Supreme Court of Pakistan is binding on all executive and judicial authorities.

12. In view of the aforesaid discussion, this writ petition has no force and is, therefore, dismissed.

(Muhammad Sajid Mehmood Sethi)
Judge

Mian Farrukh

Approved for reporting